

HEADNOTE

“1. According to R. 109(1) of the Rules of Procedure, a party may request simultaneous interpretation at the latest one month before the oral hearing. If a party makes use of this possibility, the rapporteur shall as a rule refrain from ordering simultaneous interpretation, in particular where the party requesting simultaneous interpretation has deliberately chosen a specific procedural language in which the oral hearing will now take place.

2. The rapporteur shall be all the more inclined to reject an order for simultaneous interpretation where the party in question has opposed the opposing party's request to change the procedural language (R. 323 of the Rules of Procedure) in the course of proceedings, and the oral hearing is now to be conducted, inter alia, in the originally chosen procedural language.

3. If the request for simultaneous interpretation is rejected, parties shall as a rule be permitted, upon timely request, to engage a simultaneous interpreter at their own expense. The technical equipment required for such simultaneous interpretation is available in the courtroom.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Simultaneous interpretation

Application deadline

Rejection

Change of language of proceedings

Rule 109 Simultaneous interpretation during oral hearings

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, parties must request simultaneous interpretation at least one month before an oral hearing, and the rapporteur will typically decline to order it if the requesting party deliberately selected the procedural language now being used. The court is further inclined to reject such a request where that party previously opposed a language change by the opposing party and the hearing will proceed in the originally chosen language. Where simultaneous interpretation is not ordered by the court, parties may engage and pay for their own interpreter at their own expense, with the necessary technical equipment available in the courtroom.